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LGST 312: TORTS

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PROJECT 2:
PRODUCT AND STRICT LIABILITY
ELEMENTS AND DEFENSES



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Background Information:

- Focuses on **strict liability** and **product liability** within tort law
- **Purpose:**
  - Research and analyze relevant legal defenses
  - Apply public policy and ethical considerations to legal conclusions
  - Draft legal writing that analyzes applicable tort law precedent
- **Project Goals:**
  - Explain the elements required to establish a strict liability/product liability claim
  - Identify at least three potential defenses to such claims
  - Support preparation for a real-world legal case involving strict tort liability
- **Supports Learning Outcome:**
  - Research applicable law to analyze tort issues and support legal conclusions
- **Prepared for:**
  - Partner Ava Kennedy, representing a plaintiff in a product liability case

Figure 1: This represents a checklist of all the elements of the law.

Figure 2: This represents the discussion of the current issue

Product Liability Overview

- **Negligence:** Failure to exercise reasonable care; key in analyzing defenses
- **Product Liability** Claims fall under: (1) Breach of Warranty (contract-based); (2) Negligence (tort-based); (3) Strict Liability (tort-based)
- **Negligence** Claims **require proof** of fault where **the plaintiff must demonstrate** that the defendant: (1) Duty of care; (2) breached; (3) caused the damages; and (4) actual damages
- **Strict Liability requires no proof** of fault—**the plaintiff must show**:
  - Product defect, harm caused, and sale by a business in that product line
  - Focus is on the defect, not the manufacturer's conduct
- **Common Defenses:**
  - Product misuse, assumption of risk, and comparative negligence
- **Restatement (Second) of Torts – §402A:**
  - Holds manufacturers strictly liable regardless of care taken
- **Restatement (Third) of Torts:**
  - Introduces negligence for some claims, though many states still apply strict liability
- **Project Goal:**
  - Analyze tort laws and defenses to support a potential defendant in a product liability case

Figure 3: This represents what we will discuss.

GENERAL OVERVIEW OF NEGLIGENCE

Defining Negligence and its Purpose:

- The plaintiff must prove all four elements against defendant that he/she failed to behave with the level of care and if not proven, then the defendant prevails.
- The four elements are:
  - The defendant had a duty of care
  - The duty of care was breached
  - The breach resulted in and was connected to the plaintiff's injury (Proximate Causation of Injuries)
  - The plaintiff suffered actual damage or loss

Pure comparative negligence:

- The damages that a plaintiff may recover are reduced by the percentage of their own fault

Modified comparative negligence:

- the damages that a plaintiff may recover are reduced by the percentage of their own fault and barred completely if the plaintiff was 50% or 51% at fault (varies by state)

Contributory negligence:

- a plaintiff is barred completely from recovering damages if they were even 1% at fault



Figure 4: This represents the list of laws relating to risks and liabilities.

OVERVIEW OF RESTATEMENT (SECOND/THIRD) OF TORTS

Restatement (Second) of Torts § 402A:

- *Strict Liability:* Sellers are liable for harm caused by products that are defectively dangerous to consumers.
- *Defective Condition:* A seller is liable if the product is in a defective condition that is unreasonably dangerous to the user or consumer.
- *Unchanged Condition:* The product must reach the consumer without a substantial change in its condition.
- *No Need for Care or Privity:* The seller's care in preparation or sale, or the lack of a contractual relationship, does not negate liability.
- **Example**: A manufacturer is strictly liable for a defect in a product, even if they exercised all possible care in its production, as long as the product is defectively dangerous to consumers (*Restatement (Second) of Torts § 402A*, 1965).

Restatement (Third) of Torts:

- *Strict Liability:* Manufacturers/sellers are held strictly liable for defective products, no need to prove fault.
- *Types of Defects:* Covers design defects, manufacturing defects, and failure to warn.
- *No Privity Requirement:* Liability extends to users, even without a direct relationship to the defendant.
- *Defense:* Includes misuse, assumption of risk, or post-sale alterations.



Figure 5: This represents the list of laws relating to risks and liabilities.

GENERAL OVERVIEW OF PRODUCT LIABILITY



Figure 6: This represents the list of laws relating to risks and liabilities.

This will go over the product liabilities and defining the laws before breaking down for two different scenarios.

Product Liability:

- This is when a product fails and results in loss or injury.
- This is due to a defect in design, and it results from intended use

Types of Liabilities:

- Warranty (Contract Law):
- Negligence (Tort Law)
- Strict Liability (Tort Law)

GENERAL OVERVIEW OF STRICT LIABILITY

Strict Liability (Tort Law):

- A defective product that the defendant is responsible and liable for as it caused injuries for the plaintiff.
- Or it is defined as the plaintiff does not need to prove fault, only that the injury occurred as a result of using the defective product.
- It is a consumer cause of action against a manufacturer and seller/distributor resulting from a defective product.

It must meet all these elements (not in a specific order):

- The product is in defective condition or dangerous to the consumer when sold.
- The defendant is normally engaged in the business of selling/distributing the product.
- The plaintiff incurs physical harm to self or property from the product.
- The defective condition must be the proximate cause of the injury or damage.
- The goods must not have been substantially changed from the time the product was sold to the time the injury was sustained.
- Even if the defendant uses all possible care to avoid the injury.
- This also has some limitations about what situations that is not applicable with this law



Figure 7: This represents the list of laws relating to risks and liabilities.

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To establish strict product liability, the plaintiff must prove that the product was defective. The defect can fall under one of the following categories:

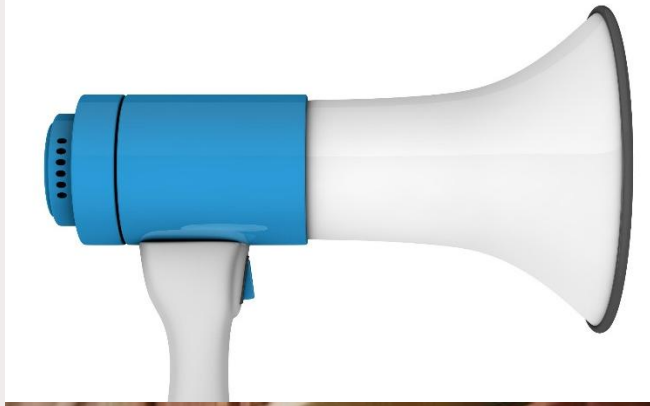
1. **Design Defect**: The product's design is inherently unsafe (e.g., a phone that explodes due to a design flaw).

2. **Manufacturing Defect**: The product deviates from the intended design due to errors during manufacturing (e.g., a defective car tire).

3. **Failure to Warn (Marketing Defect)**: The product lacks sufficient warnings about non-obvious dangers (e.g., a food product without allergy warnings).

- **Example**: A phone battery explodes because of a design flaw (Libby, J., n.d.).

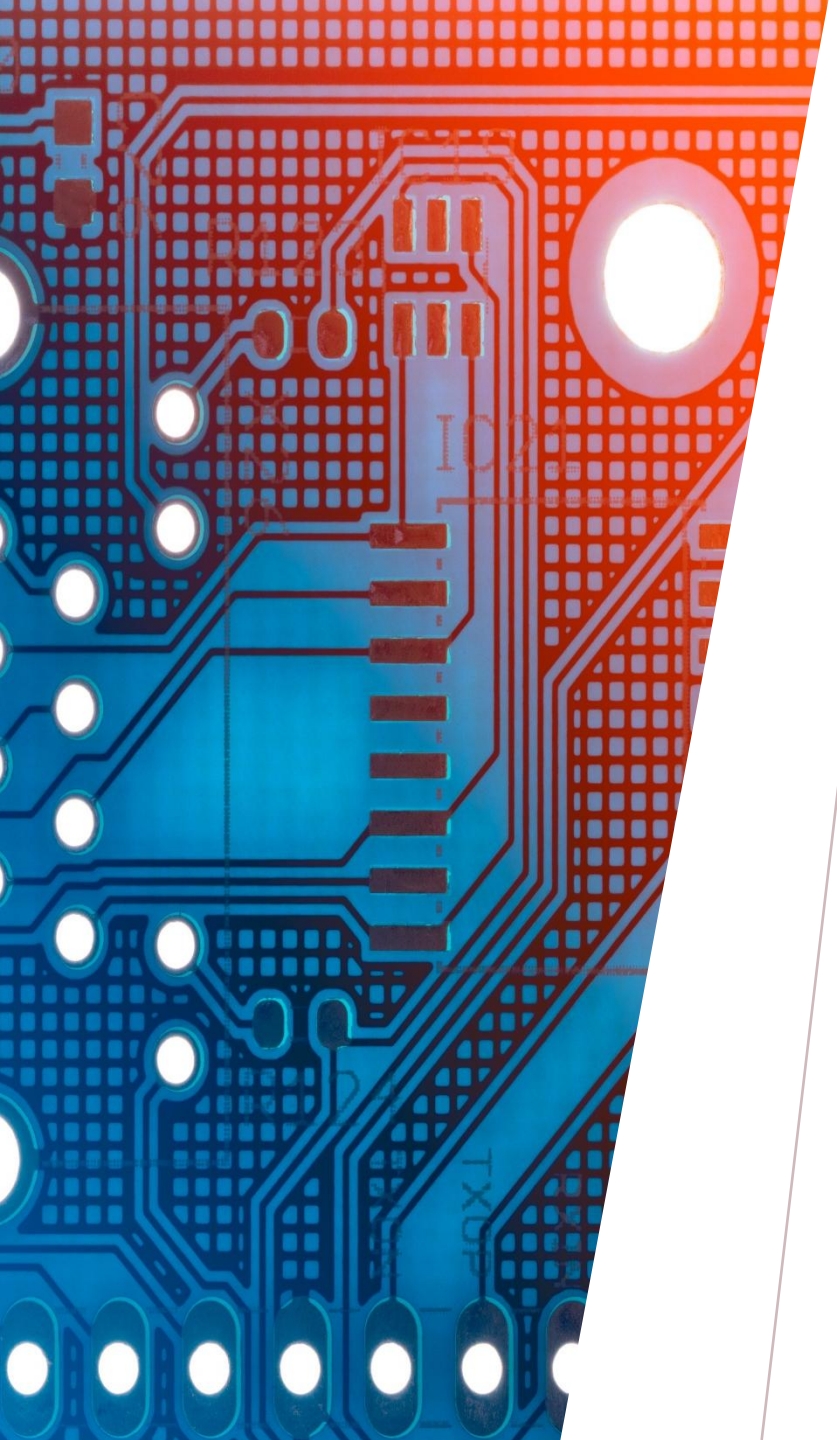
- **Case Law:** In *Jones v. Amazing Tech Co.:* The plaintiff sued after suffering burns from a smartwatch that overheated during regular use. The court held it was a design defect, as all units had the same overheating risk due to flawed circuitry.







Figures 8,9,10: This represents the list of elements and examples



Proximate Cause: Defect Existed Before Product Reached Consumer

- The defect must have **existed before the product reached the consumer**, and the chain of distribution is vital.
- Any **modifications made** by the user **after the product left the manufacturer's control** that were unforeseeable may affect liability.
- Liability attaches to any party in the distribution chain: **manufacturer, wholesaler, retailer, etc**.
  - **Example**: A contaminated food item was sealed and sold without changes after leaving the manufacturer (*Libby, J., n.d.*).
  - **Case Law:** In the *Jones* case, Jones showed through expert evidence that the defective watch circuitry was present before sale, supporting this element. No alteration occurred post-sale.

Element 3: Defect Is Unreasonably Dangerous

- A product is considered **defective if it presents a danger** beyond what the average consumer would reasonably expect.
- A product may be dangerous but still not “unreasonably” dangerous **if properly warned**.
- This element examines how dangerous the product is from the **consumer's perspective**.
- **Example**: A toaster catches fire under normal use, making it unreasonably dangerous (*Libby, J., n.d.*).
- **Case Law:** In *Jones*, the Ninth Circuit found the smartwatch was unreasonably dangerous, as an average user wouldn’t expect a wearable device to overheat and cause skin burns during casual wear.





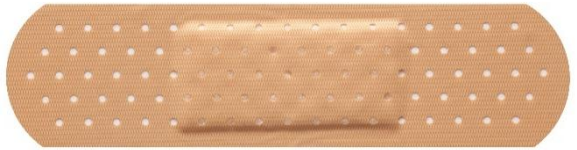
ELEMENT 3: DEFENDANT IS A COMMERCIAL SELLER OR DISTRIBUTOR

- Strict liability applies only to those who are regularly engaged in the **business of selling** or **distributing the product**, not casual sellers or individuals.
- This requirement includes **manufacturers, retailers**, and other commercial entities in the **product's distribution chain**.
- In other words, the defendant must be a **commercial seller**, not a casual or occasional seller.
- **Case Law Example**: A car dealership is liable for a defective car, while a private individual selling a used car is generally not. The company *Amazing Tech Co.* was a consumer electronics company, regularly manufacturing and distributing smartwatches. This element was undisputed (*Jones v. Amazing Tech Co.*, 897 F.3d 245, 2019).

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- The defect must be the **proximate cause** (defect) of the injury.
- There must be a **direct causal connection** between the defect and the injury.
- The plaintiff **must prove** both **proximate cause** (defect) and **actual harm**.
- **Example**: Injury caused by a shattered glass bottle due to weak material (*Libby, J., n.d.*).
- **Case Law:** In *Jones*, medical records and expert testimony linked the burns directly to prolonged skin contact with the smartwatch. The court found clear causation.





Figures 11, 12: This represents the list of elements and examples



Defenses & Product Misuse and Alteration

- **Product misuse** occurs when the plaintiff uses the product in a manner that was not intended or reasonably foreseeable by the manufacturer.
- If the misuse was unforeseeable, it could break the chain of causation and may eliminate or reduce liability.

- **Example**: Using a hairdryer in the shower is unforeseeable misuse that could break the chain of causation (*Libby, J., n.d.*).

- **Case Law:** *In Jones*, Amazing Tech argued Jones wore the watch too tightly and while exercising in extreme heat — a "misuse." The Court's response was rejection as it was foreseeable that users would wear smartwatches in varying conditions, including outdoors and during exercise. Misuse defense failed.

- The defendant may avoid liability if they can prove that the plaintiff substantially **altered the product** after it left the manufacturer's control and the alteration caused the injury.
- Courts have consistently held that if the product was substantially altered and such alterations were not foreseeable to the manufacturer, the defect may not have existed when the product left the manufacturer.

- **Example**: Removal of safety guards on machinery (Libby, J., n.d.).

- The most common example of an alteration defense is the removal of safety devices, which was designed to make the product safe for use. If this alteration led to the injury, the manufacturer may be relieved of liability (*Libby, J., n.d.*).

Defense 3: Assumption of Risk

- The defense of **assumption of risk** applies when the plaintiff knowingly and voluntarily assumed the risk of harm.
- The manufacturer may avoid liability if the plaintiff had **actual knowledge** of the defect or danger and **voluntarily encountered** it.



Figure 13: This represents the defense and examples

- **Example**: A person using heavy machinery without regard for the obvious risk (*Libby, J., n.d.*). This defense often arises in recreational activities but can apply more broadly when a person knowingly uses a dangerous product.
- **Case Law:** In *Jones*, Amazing Tech failed on this as Jones did not know of the overheating risk — there was no warning label or recall notice. Thus, no assumption of risk was established.



Defense 3: Contributory Negligence and Comparative Negligence

- **Contributory negligence** is applicable when the plaintiff's actions **contribute to their injury**.
- In some states, this defense can bar recovery altogether if the plaintiff is even minimally at fault, while other states apply **comparative negligence**, reducing the damages according to the degree of fault.
- Secondly, Most states allow liability to be split among parties
- Plaintiff may still recover if not more than 50% at fault (varies by state)
- **Example**: A plaintiff continues using a defective product, despite warnings or instructions (*Libby, J., n.d.*). If a claimant uses a product counter to the product's instructions or uses it despite knowing of a defect, the manufacturer may not be fully liable.
- **Case Law:** In the *Jones* case, Amazing Tech argued Jones failed to read the user manual. The court found no clear evidence that reading the manual would have avoided the injury. Comparative negligence didn't significantly reduce the award.

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- The **statute of limitations** sets a maximum period during which a plaintiff can file a lawsuit.
- In strict product liability claims, the claim must generally be **filed within a certain number of years (typically 2–3 years)** from the date of the injury or discovery of the injury.
- The **discovery rule** applies in some jurisdictions, which means the “clock” starts once the plaintiff reasonably discovers the injury and the need for a lawsuit.
- **Example**: A plaintiff files a lawsuit two years after the injury, but the statute of limitations in the jurisdiction only allows for a claim within one year (*Libby, J., n.d.*).
- **Case Law:** Jones filed within 18 months of the incident. Defense didn’t apply.
- If the plaintiff becomes aware of a defect and continues to use the product, they may be barred from recovering damages.
- **Example**: A consumer continues using a car with known brake defects (*Libby, J., n.d.*).



[illegible]



- **Case in Bluebook Citation:**
  - *Jones v. Amazing Tech Co.*, 897 F.3d 245 (9th Cir. 2019)
    - Plaintiff was injured using a power tool with missing warnings
    - Court applied assumption of risk defense; plaintiff's claim denied
- **Legal standard:** Defendant not liable where plaintiff knowingly faced the risk
- **Rule of law:** Manufacturers are not liable if the plaintiff voluntarily assumed a known risk
- **Outcome:** Court reinforced the importance of clear product warnings





Figures 14, 15, 16: This represents the list of case law examples and the issue



Overview

- Designed to **protect consumers** from harm caused by defective products
- Holds manufacturers, sellers, and distributors **strictly liable**—even without proving negligence
- Liability can be **reduced or eliminated** through established defenses, including:
  - **Product misuse**
  - **Assumption of risk**
  - **Product alteration**
  - **Contributory negligence**
  - **Statute of limitations**
- Understanding both **elements of liability** and **available defenses** is essential for legal practitioners and consumers
- Helps navigate the **complexities of product liability law** effectively

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Thank you for allowing me to present this project. Feel free to utilize this for potential future defenses!

Resources are in the speaker's notes for all of these slides.

- Best regards,
- Victoria Lee

